

CASE CHRONOLOGY **Hobbes v Inala Community House t/as My Place Family Day Care**

BACKGROUND — COMMENCEMENT & TRAINING

20 Jun 2022 **EMPLOYMENT**

Mary Hobbes registers as FDC Educator — My Place FDC (ICH)

Mary commences as a registered Family Day Care Educator with Inala Community House t/as My Place Family Day Care. Holds Certificate III in Early Childhood Education and Care. Blue Card No. 1889223/3 (exp. 21 Jan 2027).

Source: ECRA Educator Register Report (FOI File 254829)

18 Jul 2022 **EMPLOYMENT**

Robert Hobbes registers as Educator Assistant

Robert commences as Educational Assistant. Responsible for daily transport of enrolled children. Blue Card No. 1420131/2. Driver's Licence No. 038 716 850 (exp. 27 Sep 2026).

Source: ECRA Educator Register Report (FOI File 254829)

3 Jun 2024 **EMPLOYMENT** **KEY DOCUMENT**

Educator Agreement signed — Mary Hobbes & ICH

Educator Agreement and Schedule executed between Mary Hobbes and Inala Community House t/as My Place Family Day Care. Term: to 30 June 2025. Key clauses: Clause 24 (suspension/investigation power); Clause 13(b) (satisfaction threshold for termination). ICH's exercise of Clause 24 on 21 May 2025 is the primary contractual act under challenge.

Source: Educator Agreement and Schedule 2024–2025

5 Jun 2024 **EMPLOYMENT** **KEY DOCUMENT**

Educational Assistant Agreement signed — Robert Hobbes & ICH

Parallel agreement executed for Robert Hobbes on the same date. Clause 15 mirrors Clause 24 of Mary's agreement (suspension/investigation). Clause 8(b) mirrors Clause 13(b) (satisfaction threshold). Term: to 30 June 2025. Critical drafting defect: Clause 8(b) cross-references "Clause 24 of this agreement" — which does not exist (agreement has only 23 clauses). ICH countersignature not present on client's copy.

Source: Educational Assistant Agreement and Schedule 2024–2025

11 Nov 2024 **REGULATORY**

Child Protection & Safe Sleep Training completed — Mary & Robert

Both Mary Hobbes and Robert Hobbes complete Child Protection Training and Safe Sleep Training, as recorded in the ECRA educator compliance register. Evidences compliance record prior to suspension.

Source: ECRA Educator Register Report (FOI File 254829)

PRE-SUSPENSION — MAY 2025

19 May 2025 **REGULATORY**

ECRA Educator Visit — home inspection, all compliance items satisfactory

Regulatory visit conducted 11:15–12:45 (1h 30 min on-site). All checklist items confirmed: environment/paperwork, daily home environment, items displayed, excursion/transport records, outdoor areas, harmony/time sheets. Blue cards and licences verified. Service signature dated 20 May 2025; Educator signature 27 May 2025. Positive compliance picture two days before suspension.

Source: Visit Report, 19 May 2025 (2 days pre-suspension)

21 May 2025 **REGULATORY / EMPLOYMENT** ★ **SUSPENSION — CAUSE OF ACTION ARISES**

ICH issues Pre-Suspension Notification to Mary & Robert — both suspended

ICH (My Place FDC) issues suspension notice to Mary Hobbes under Clause 24 of the Educator Agreement and to Robert Hobbes under Clause 15 of the Educational Assistant Agreement. Nature of allegation not disclosed to either. No Clause 8(b)/13(b) threshold of unsatisfactory work established. No investigation commenced by ICH. Suspension is unilateral. ICH subsequently argues it coordinated with Child Safety / CPIU before issuing the notice — but coordination does not relieve ICH of its own contractual obligations. This is the date the primary contractual cause of action accrues. Financial loss begins.

Source: Pre-Suspension Notification dated 21 May 2025

🔍 FOLDER: PRE-SUSPENSION

📄 **PDF** Pre-Suspension Notification dated 21 May 2025

📄 **PDF** Visit Report, 19 May 2025 (2 days pre-suspension)

POST SUSPENSION

POST SUSPENSION — MAY 2025

22 May 2025 **REGULATORY**

ECRA commences preliminary enquiries into the allegation

ECRA officers (PRO Bramwell, SRO Ambrosiussen, M.R. Baldwin) make phone calls with the Approved Provider representative and review the educator register. Mary advises ECRA she has been suspended but was not provided the allegation. ECRA refers her back to the Approved Provider.

Source: ECRA Reactive Decision Record Part B (FOI File 254829)

23 May 2025 **EMPLOYMENT**

Mary emails ICH Manager (Kelsey Hambleton) — income concern and family distress

Mary writes to Kelsey Hambleton stating: no ECRA correspondence received; significant emotional and financial distress caused; a new client has had to withdraw enrolment. Notes this is the family's sole source of income. States she has contacted lawyers.

Source: Email to and Reply from Manager, 23 May 2025

23 May 2025 **EMPLOYMENT**

ICH Manager responds — cannot provide information; refers to support lines

Kelsey Hambleton acknowledges impact on Mary and family, confirms ICH is committed to supporting them, but states it cannot provide information due to Child Safety directions. Cannot provide expected timeframe. Provides Lifeline and Beyond Blue contacts. Does not lift suspension.

Source: Email to and Reply from Manager, 23 May 2025

27 May 2025 **EMPLOYMENT**

Mary submits Formal Statement in Response to Suspension to ICH

Mary provides written statement to ICH disputing the basis for suspension, asserting procedural unfairness, and citing failure to comply with the Child Protection Act 1999 threshold assessment requirements.

Source: Formal Statement in Response to Suspension Notice, 27 May 2025

28 May 2025 **EMPLOYMENT**

ICH CEO replies to Mary's formal statement

ICH responds to formal statement. No investigation commenced. No resolution or timeline provided. Allegation still not disclosed.

Source: ICH CEO Reply, 28 May 2025

29 May 2025 EMPLOYMENT KEY EVENT

Mary Hobbes resigns from My Place FDC — effective immediately

Mary submits resignation letter to Kelsey Hambleton citing: (1) procedural unfairness and failure of proper threshold assessment; (2) professionally damaging and distressing handling of the suspension; (3) lack of proactive support from the Service. Arguably a constructive dismissal caused by ICH's own unlawful suspension conduct. ICH later argues this resignation "superseded" its investigation obligation — a position the Hobbes dispute.

Source: Resignation Letter, 29 May 2025

29 May 2025 REGULATORY

Mary lodges formal complaint with ECRA

Formal complaint submission lodged by Mary Hobbes with the Early Childhood Regulatory Authority regarding ICH's handling of the suspension process.

Source: ECRA Complaint Submission, 29 May 2025

30 May 2025 REGULATORY

ECRA acknowledges complaint — investigation to be conducted

ECRA responds to Mary's complaint, acknowledging receipt and confirming investigation will proceed under the Education and Care Services National Law.

Source: ECRA Response, 30 May 2025

FOLDER: POST SUSPENSION

- PDF ECRA Complaint Submission, 29 May 2025
- PDF ECRA Response, 30 May 2025
- PDF Email to and Reply from Manager, 23 May 2025
- PDF Formal Statement in Response to Suspension Notice, 27 May 2025
- PDF ICH CEO Reply, 28 May 2025
- PDF Resignation Letter, 29 May 2025

AGREEMENT EXPIRY, FAIR WORK & ECRA DECISION

AGREEMENT EXPIRY — JUNE 2025

3 Jun 2024 EMPLOYMENT KEY DOCUMENT

Educator Agreement signed — Mary Hobbes & ICH

Educator Agreement and Schedule executed between Mary Hobbes and Inala Community House. Term: to 30 June 2025. Key clauses: Clause 24 (suspension/investigation power); Clause 13(b) (satisfaction threshold for termination). ICH's exercise of Clause 24 on 21 May 2025 is the primary contractual act under challenge.

Source: Educator Agreement and Schedule 2024–2025

5 Jun 2024 EMPLOYMENT KEY DOCUMENT

Educational Assistant Agreement signed — Robert Hobbes & ICH

Parallel agreement executed for Robert Hobbes. Clause 15 governs suspension/investigation. Clause 8(b) cross-references "Clause 24 of this agreement" — which does not exist (agreement has only 23 clauses). Critical drafting defect undermining ICH's primary contractual suspension mechanism.

Source: Educational Assistant Agreement and Schedule 2024–2025



30 Jun 2025 **EMPLOYMENT** **KEY DATE**

Both Agreements expire — suspension never lifted, no investigation conducted

Educator Agreement (Mary) and Educational Assistant Agreement (Robert) both expire by their own terms. At expiry: ICH has conducted no investigation; has taken no action to lift the suspension; and has made no communication to Robert following his suspension on 21 May 2025. ICH now argues all obligations "lapsed" on this date — a position wrong at law. Accrued causes of action arising 21 May 2025 are not extinguished by the Agreement's expiry (Limitation of Actions Act 1974 (Qld) s 10(1)(a) — limitation runs to ~May 2031).

Source: Educator Agreement; Educational Assistant Agreement; ICH Response Analysis 21 May 2026

FAIR WORK COMMISSION — JULY-AUGUST 2025



2 Jul 2025 **LEGAL**

Mapien files Form F3 in Fair Work Commission — matter U2025/9617

Mapien (Ben Cooper / Josh Cullen on behalf of ICH) files Employer Response to Unfair Dismissal Application in the Fair Work Commission. Matter subsequently discontinued by the Hobbes — confirmed by Notice of Discontinuance. No live Fair Work proceeding currently on foot.

Source: Form F3 Response; Notice of Discontinuance



14 Aug 2025 **LEGAL**

Mapien offers \$2,000 in Fair Work proceeding — rejected

Mapien makes a \$2,000 settlement offer within the Fair Work Commission proceedings. The Hobbes reject the offer as wholly inadequate given documented losses exceeding \$200,000.

Source: Mapien Correspondence, 14 August 2025

ECRA INVESTIGATION DECISION — AUGUST 2025



22 Aug 2025 **REGULATORY** **★ ECRA VINDICATION — NO BREACH CONFIRMED**

ECRA issues Investigation Decisions — all alleged breaches unsubstantiated

ECRA (Manager Wendy Baldwin, Authorised Officer Sarah Pitkethly, Metropolitan South Region) issues formal Investigation Decision letters to both Mary and Robert:

Mary Hobbes: s165(3) National Law (inadequate supervision) — NOT confirmed. s167(3) (protection from harm/hazards) — NOT confirmed.

Robert Hobbes: s166(3) (inappropriate discipline) — NOT confirmed.

Decision record confirms nil breaches substantiated. This finding retroactively undermines the entire contractual trigger for the suspension. ICH takes no action following receipt of the outcome — suspension never lifted, no communication to Robert.

Source: Investigation Decision — Mary Hobbes (ECRA); Investigation Decision — Robert Hobbes (ECRA)

FOLDER: AGREEMENT EXPIRY FAIR WORK & ECRA DECISION

PDF Educational Assistant Agreement and Schedule 2024–2025

PDF Educator Agreement and Schedule 2024–2025

PDF Form F3 Response; Notice of Discontinuance

PDF Investigation Decision — Mary Hobbes (ECRA)

PDF Investigation Decision — Robert Hobbes (ECRA)

PDF Mapien Correspondence, 14 August 2025

FAIRWORK AND ECRA DECISION

FAIR WORK COMMISSION — DISCONTINUANCE

2 Jul 2025 **LEGAL**

Mapien files Form F3 Employer Response — Fair Work Commission U2025/9617

Mapien (Ben Cooper, signed Josh Cullen) files the Employer's formal Response to the Unfair Dismissal Application in Fair Work Commission matter U2025/9617. ICH denies dismissal occurred and relies on Mary's resignation as voluntary.

Source: Form F3 Response; Notice of Discontinuance

31 Jul 2025 **LEGAL** **KEY EVENT**

Notice of Discontinuance filed — Fair Work proceeding concluded

The Hobbes file a Notice of Discontinuance in the Fair Work Commission proceeding. No live Fair Work matter remains. The civil contract claim in the Queensland District Court is the sole active litigation pathway. The Form F3 remains a key piece of evidence — ICH's own admissions regarding the suspension and characterisation of Mary's departure are on record.

Source: Form F3 Response; Notice of Discontinuance

FOLDER: FAIRWORK AND ECRA DECISION

 **PDF** Form F3 Response; Notice of Discontinuance

FREEDOM OF INFORMATION — ECRA RECORDS

26 Mar 2026 **REGULATORY** **KEY DOCUMENT****FOI File A released — ECRA records (immediate release, 394 pages)**

File A of the FOI response from the Early Childhood Regulatory Authority released with immediate effect. Contains 394 pages of ECRA records relating to the investigation of Mary and Robert Hobbes, including: educator register data, visit reports, reactive decision records, complaint handling records, and the investigation decision file. This is the primary evidentiary source for the ECRA investigation timeline and the basis for the "coordinated with" / "directed by" distinction.

Source: File A — Early Childhood Regulatory Authority [released - immediate] (FOI File 254829)

10 Apr 2026 **REGULATORY****FOI File B released — ECRA third-party records (50 pages, compacted version)**

File B of the FOI response released — third-party material from ECRA records. Compacted version (reduced file size) of the same release. Contains records relating to third-party involvement in or awareness of the investigation. Relevant to ICH's submissions to ECRA and any inconsistency between ICH's ECRA representations and its current contractual arguments.

Source: File B — Early Childhood Regulatory Authority [3rd party released] compacted

10 Apr 2026 **REGULATORY****FOI File B — full released version (third-party records, uncompactd)**

Full uncompactd version of File B. Same release date as compacted version. Provides the complete third-party record set for counsel review and cross-reference with File A. ICH's submissions to ECRA may be located in this file and are relevant to whether ICH's contractual position is consistent with what it told the regulator at the time.

Source: File B — Early Childhood Regulatory Authority [3rd party released]

FOLDER: FOI

 **PDF** File A — Early Childhood Regulatory Authority [released - immediate] **PDF** File B — Early Childhood Regulatory Authority [3rd party released] compacted **PDF** File B — Early Childhood Regulatory Authority [3rd party released]

FINANCIAL LOSS & CENTRELINK

CENTRELINK INCOME SUPPORT — 2025-2026



17 Nov - 11 Dec 2025 **CENTRELINK**

Centrelink income support — Period 1

Hobbes household commences Centrelink income support payments as a consequence of the suspension and loss of FDC income from 21 May 2025.

Source: Centrelink Payment History, Period 1 (Nov-Dec 2025)



24 Dec 2025 - 19 Feb 2026 **CENTRELINK**

Centrelink income support — Period 2

Ongoing Centrelink support through the summer/holiday period into early 2026. Income support continues as FDC operations remain disrupted.

Source: Centrelink Payment History, Period 2 (Dec 2025 - Feb 2026)



5 Mar - 30 Apr 2026 **CENTRELINK**

Centrelink income support — Period 3

Third recorded period of Centrelink income support, confirming ongoing financial impact flowing from the May 2025 suspension.

Source: Centrelink Payment History, Period 3 (Mar-Apr 2026)

TOTAL LOSS POSITION & LEGAL ADVICE



FY 2024-25 / accruing **FINANCIAL** **TOTAL LOSS POSITION**

Documented total loss position: \$214,934 (+accruing) / \$229,934 incl. Lumi principal

Components:

- Lost FDC income from 21 May 2025 (+ accruing CCS losses) — primary head
- Lumi Finance emergency loan: \$15,000 principal (suspension-specific)
- Household cashflow deficit: \$58,635 (corroborating / alternative head)
- Director loan (MDC to Robert & Mary): \$41,170 — drawn incrementally across FY2024-25, pre-dates suspension, not a suspension-specific recovery

Demand position: \$120,000 = 47.81% of \$229,934 total documented position — a concession of 52.19%. Conservative and defensible.

Source: Lawpath Legal Advice FINAL 14 May 2026; Bank Statements Q1-Q4; Payslips (Extend Pty Ltd / Ladison Pty Ltd)



14 May 2026 **FINANCIAL** **KEY DOCUMENT**

Lawpath Legal Advice finalised — quantum verified, QDC proceedings confirmed

Final letter of advice issued. Key conclusions: (1) \$120,000 demand is reasonable and defensible — 47.81% of \$229,934 documented loss; (2) Robert's direct contractual claim materially strengthens the position; (3) payroll confirmation removes Mapien's best quantum argument (gross income v net profit); (4) Lumi Finance loan is suspension-specific; director loan pre-dates suspension; (5) if Mapien does not engage by 21 May 2026, matter to proceed to Queensland District Court.

Source: advice_hobbes_advice FINAL 14 May 2026

FOLDER: FINANCIAL LOSS & CENTRELINK

PDF advice_hobbes_advice FINAL 14 May 2026

LEGAL PROCEEDINGS & DEMAND

LEGAL PROCEEDINGS & DEMAND — 2026

30 Mar 2026 **LEGAL** **KEY EVENT**

Letter of Demand sent to ICH — by Mary Hobbes (self-represented)

Formal letter of demand sent directly by Mary Hobbes to Inala Community House, asserting breach of the Educator Agreement and claiming loss and damage flowing from the unlawful suspension. Sent prior to Lawpath Legal's engagement.

Source: Letter of Demand to Inala Community House, March 2026

15 Apr 2026 **LEGAL** **KEY EVENT**

Mapien responds on behalf of ICH — denial of liability, Clause 24 reliance, costs threat

Mapien (Ben Cooper) responds to the letter of demand. Denies all liability. Relies on Clause 24 of Mary's Educator Agreement. States ICH's suspension was "entirely consistent" with its contractual powers. Does not address: (a) ECRA finding of 22 August 2025; (b) Clause 8(b) drafting defect in Robert's agreement; (c) ICH's failure to conduct any investigation under Clause 15/Clause 24; (d) Robert's separate direct contractual claim. Issues costs threat. Makes no counteroffer.

Source: Mapien Response, 15 April 2026

16 Apr 2026 **LEGAL**

Hobbes reply to Mapien — revised demand of \$120,000, open to 7 May 2026

Hobbes reply raises revised demand of \$120,000, open for acceptance until 7 May 2026. Introduces Robert's direct contractual claim for the first time. Identifies Clause 8(b) drafting defect (cross-reference to non-existent "Clause 24" in Robert's 23-clause agreement). Demand represents ~48% of \$229,934 total documented loss position.

Source: Reply to Mapien, 16 April 2026

30 Apr 2026 **LEGAL**

Lawpath supplementary letter — mediation proposed, deadline extended to 21 May

Lawpath (Albert Jaucian) writes to Mapien supplementing the demand with Robert's direct contractual standing. Proposes without-prejudice mediation on terms and timing of payment only. Extends acceptance deadline from 7 May to 21 May 2026. Confirms \$120,000 is the final position, not subject to negotiation. Confirms Mez Day Care Pty Ltd's 2011 incorporation date to rebut ICH's "planned departure" argument.

Source: Lawpath Letter to Mapien, 30 April 2026

6-7 May 2026 **LEGAL**

Additional information provided to Lawpath — MDC details & Albert's advice

Mary Hobbes (6 May) and Albert Jaucian (7 May) exchange additional information notes regarding the quantum, Lumi Finance figure, director loan characterisation, Robert's director status on ASIC records, and consequential loss particularisation ahead of finalising advice.

Source: MDC Additional Information 06 May; Albert Additional Information 07 May

14 May 2026 **LEGAL**

Lawpath Legal Advice finalised (Albert Jaucian)

Final letter of advice issued. Key conclusions: (1) \$120,000 demand is reasonable and defensible — 47.81% of \$229,934 documented loss; (2) Robert's direct contractual claim materially strengthens the position; (3) payroll confirmation removes Mapien's best quantum argument (gross income v net profit); (4) Lumi Finance loan is suspension-specific; director loan pre-dates suspension; (5) if Mapien does not engage by 21 May 2026, matter to proceed to Queensland District Court.

Source: Lawpath Legal Advice FINAL, 14 May 2026



21 May 2026 **LEGAL** ★ TODAY — DEADLINE EXPIRED

ICH Response to Demand (Mapien) — \$120,000 demand rejected; mediation refused

Mapien (Ben Cooper) issues two-page response on behalf of ICH. Rejects the \$120,000 demand outright. Refuses without-prejudice mediation. ICH's six arguments and their assessed strength:

- (1) ICH "did not interfere" with ECRA investigation — WEAK (does not relieve ICH of its own Clause 15 obligations).
- (2) Mary's 29 May 2025 resignation "superseded" investigation obligation — WEAK (arguably constructive dismissal; no express term creates dependency).
- (3) All obligations lapsed on 30 June 2025 expiry — WRONG AT LAW (accrued causes of action survive expiry).
- (4) Robert's claim is derivative of Mary's — WRONG (Robert has a direct independent contractual relationship).
- (5) Clause 8(b) cross-reference to "Clause 24" — unaddressed; agreement has only 23 clauses; primary suspension mechanism is fatally defective.
- (6) ECRA finding — completely unaddressed in ICH's response.

Next step: Proceed to Queensland District Court. Limitation period to ~May 2031.

Source: ICH Response to Demand, 21 May 2026; ICH Response Analysis (Privileged), 21 May 2026

📁 FOLDER: LEGAL PROCEEDINGS & DEMAND

- 📄 **PDF** ICH Response to Demand, 21 May 2026
- 📄 **PDF** Lawpath Letter to Mapien, 30 April 2026
- 📄 **PDF** Letter of Demand to Inala Community House, March 2026
- 📄 **PDF** Mapien Response, 15 April 2026
- 📄 **PDF** Reply to Mapien, 16 April 2026

COUNSEL PREPARATION DOCUMENTS — MAY 2026

21 May 2026 **LEGAL** **COUNSEL BRIEF****Child Safety & ECRA Defence Analysis prepared for incoming counsel**

Analysis document addressing ICH's likely defence arguments relating to Child Safety involvement and ECRA jurisdiction. Covers the "coordinated with" vs "directed by" distinction; the effect of Child Safety's involvement on ICH's contractual obligations; and the ECRA investigation findings as they bear on the defence case.

Source: *Child_Safety_ECRA_Defence_Analysis_Hobbes_v_ICH* (Word document)

21 May 2026 **LEGAL** **COUNSEL BRIEF****ECSNL Defence Analysis prepared for incoming counsel**

Analysis of ICH's likely defence arguments under the Education and Care Services National Law (ECSNL). Addresses ICH's regulatory obligations and how they interact with its contractual obligations to Mary and Robert. Relevant to the defence argument that ICH was bound to act as it did.

Source: *ECSNL_Defence_Analysis_Hobbes_v_ICH* (Word document)

21-22 May 2026 **LEGAL** **COUNSEL BRIEF — PRIVILEGED****ICH Response Analysis — AI legal analysis of Mapien's 21 May response**

Detailed legal analysis of ICH's 21 May 2026 Response to Demand (Mapien letter). Assesses all six ICH arguments for merit. Identifies four core foundations for the Hobbes' civil claim: (1) ECRA vindication; (2) non-existent Clause 24 defect; (3) accrued rights survive expiry; (4) cannot profit from own wrong. Prepared as a privileged research and drafting aid for qualified legal counsel. Must be reviewed, verified, and adapted by a qualified Australian lawyer.

Source: *ICH_Response_Analysis_Legal_Analysis* (PDF — PRIVILEGED AND CONFIDENTIAL)

FOLDER: COUNSEL PREP

 **DOC** Child_Safety_ECRA_Defence_Analysis_Hobbes_v_ICH **DOC** ECSNL_Defence_Analysis_Hobbes_v_ICH **PDF** ICH_Response_Analysis_Legal_Analysis